



**153rd GENERAL ASSEMBLY
FISCAL NOTE**

BILL:	SENATE BILL NO. 181
SPONSOR:	Senator Seigfried
DESCRIPTION:	AN ACT TO AMEND TITLE 6 OF THE DELAWARE CODE REGARDING THE SECONDARY TICKETING MARKET.

Assumptions:

1. This Act shall become effective upon signature by the Governor. It shall be implemented within 1 year from the date of enactment or notice of publication within the Register of Regulations that final regulations have been promulgated.
2. This Act regulates the sale and exchange of tickets for events in Delaware by establishing transparency requirements, certain prohibitions, restrictions on presales, refund and bonding obligations, enforcement mechanisms, and penalties for noncompliance. The bill also requires registration, reporting, and auditing of resellers and secondary exchanges.
3. The Department of Justice (DOJ), Division of Consumer Protection estimates that it would require 1.0 FTE, Deputy Attorney General (DAG); and 1.0 FTE, Legal Assistant III positions to research and draft regulations, manage the establishment of the publicly accessible website, and eventual management of the registration, reporting, and auditing requirements, and other requirements to comply with the provisions of this Act. The recurring Fiscal Year 2026 costs are estimated at \$229,977, and one-time costs are estimated at \$163,340 and are as follows:
 - a. Recurring Costs – \$229,977
 - i. \$214,977 in Fiscal Year 2026 personnel costs (9 months of funding), including OECs (at a rate of 33.34%), for 1.0 FTE, DAG V; and 1.0 FTE, Legal Assistant III.
 - ii. \$15,000 in estimated annual costs for user licensing fees associated with establishing a registry and publicly available website.
 - b. One-Time Costs – \$163,340
 - i. \$13,340 for computers, office furniture, and other supply startup costs for the new positions.
 - ii. \$150,000 for establishing a registry and publicly available website related to provisions of this Act.
4. The Fiscal Year 2026 personnel costs have been estimated for nine months of funding, with the annualization of the remaining three months incorporated into subsequent year estimates. Additionally, a 2% inflation cost has been included for projected increases in salary, health insurance, and OECs.

Cost:

	<u>One-Time</u>	<u>Operating/Recurring</u>
Fiscal Year 2026:	\$163,340	\$229,977
Fiscal Year 2027:		\$307,368
Fiscal Year 2028:		\$313,216

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Office of the Controller General